

Pradeep Chaudhary v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 3 April 2023 · WRIT - C No. - 10831 of 2023 · **Disposed as infructuous on withdrawal of theft-recovery citation**

HEADNOTE

Writ challenging a recovery citation for electricity-theft dues was disposed of after the Electricity Department withdrew the citation and undertook to issue a fresh show-cause notice. Any fresh order must follow the procedure prescribed under the U.P. Electricity Supply Code, 2005. Liability and quantum were not decided.

FACTUAL SUMMARY

Pradeep Chaudhary filed a writ petition in the Allahabad High Court challenging a recovery citation dated 29 January 2022 issued by respondent no. 2 for electricity dues alleged to arise from theft of electricity. The State of Uttar Pradesh and the Electricity Department were respondents. Counsel for the Department told the Court that the impugned notice had already been withdrawn, that a fresh show-cause notice was being issued, and that a fresh order would be passed after the petitioner's objections were considered.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh order after withdrawal of a theft-recovery citation

HOLDING

The writ is disposed of. The Electricity Department, having withdrawn the recovery citation, may pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005, after a fresh show-cause notice and consideration of objections. ¶ 1

FLAG The order invokes the U.P. Electricity Supply Code, 2005 generally and does not identify a clause. Catalog hits on clause 3.4 do not arise.

PRINCIPLE TAGS

fresh-order-after-withdrawn-theft-citation-must-follow-supply-code-procedure Once the Department withdrew the 29 January 2022 recovery citation and proposed a fresh show-cause notice, the Court disposed of the writ and required the fresh order to follow the procedure prescribed under the U.P. Electricity Supply Code, 2005, without construing any numbered clause. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE FOR THE ALLEGED ELECTRICITY-THEFT DUES, AND IN WHAT AMOUNT

The citation was withdrawn. The Court left any fresh assessment to a new show-cause process and did not rule on theft or quantum. ¶ 1